

25STCV21584 25STCV21584

County: los-angeles

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Case Number: 25STCV21584 Hearing Date: July 15, 2026 Dept: 406

ART DECK, INC.,

Plaintiff,

v.

STRUCT 1 BUILDERS, INC.,

et al.,

Defendants.

Case No.: 25STCV21584 (Lead case)

25SMCV04920 (Related
case)

Hearing Date: July 15, 2026

[TENTATIVE]

order RE:

defendant design villas homeowners
association's demurrer to first amended complaint

I. BACKGROUND

a. Lead Case (25STCV21584)

On July 22, 2025, Plaintiff Art Deck, Inc.

(Art Deck) filed an action against Defendants Struct 1 Builders, Inc. (S1B), et al. for breach of contract and foreclosure of mechanics lien. Art Deck alleges that it was hired as a subcontractor of S1B to perform construction services on the subject property, which is allegedly owned by the other named defendants. Art Deck alleges that S1B breached the subcontract by failing to pay the amount owed. Art Deck sues S1B for breach of contract and seeks to foreclose on a mechanics lien as against the remaining owner defendants.

b. Related Case (25SMCV04920)

On September 19, 2025, S1B filed a complaint against Defendant Design Villas Homeowners Association, Inc. (HOA). S1B filed the operative First Amended Complaint on February 23, 2026, alleging (1) breach of contract, (2) foreclosure of mechanics lien, (3) quantum meruit, and (4) open book account.

S1B alleges that it contracted with HOA, which owns the subject property, to provide construction services. S1B alleges that HOA failed to pay the amount due under the contract. S1B seeks damages against HOA, including the amount that Art Deck seeks from S1B under the subcontract.

The two cases have been related and consolidated, with 25STCV21584 as the lead case.

c. The Instant Motion

On May 29, 2026, HOA filed the instant demurrer to S1B's FAC. S1B filed an opposition on July 1, 2026. HOA filed a reply on July 8, 2026.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the

pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

III. MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.)

Here, defense counsel’s declaration only indicates meet and confer regarding the original complaint. (See Zumstein Decl. ¶¶ 6-7.) However, “[i]f an amended complaint . . . is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.” (Code Civ. Proc., § 430.41(a).) The instant demurrer pertains to the FAC, but counsel’s declaration contains no evidence of a meet and confer pertaining to the FAC. Therefore, the Court finds that Defendant failed to adequately meet and confer.

Nonetheless, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41(a)(4).) The issues raised in the demurrer are relatively straightforward, and the parties’ positions are clearly set forth in their respective briefs. Therefore, the Court proceeds on the merits.

IV. DISCUSSION

a. Breach of Contract

A demurrer for uncertainty is

disfavored and is only granted “if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) A complaint does not need to be a “model of clarity” to survive a demurrer because most ambiguities can be clarified through discovery. (Ibid.)

HOA argues that the first cause of action is uncertain because S1B alleges amounts owed under three separate contracts but claims one omnibus outstanding amount. The alleged outstanding amount is also less than the sum of the three contracts, indicating that approximately \$43k has been paid towards the balance. HOA argues that the FAC “never provides what construction work was paid for, or relatedly what work has not been paid for” and that “the correct amount of balance owed has not been identified.” (Dem. 3:10-16.)

However, these are ambiguities that can be clarified through discovery. The complaint sufficiently “apprises [HOA] of the factual basis of the claim” by alleging that HOA failed to pay the amount owed under the specified contracts. (See Lim, supra, 99 Cal.App.4th at p. 690.) This places HOA on sufficient notice to respond. The failure to specify the precise amount due does not render the complaint “so incomprehensible that a defendant cannot reasonably respond.” (See A.J. Fistes Corp., supra, 38 Cal.App.5th at p. 695.)

b. Foreclosure of Mechanics Lien

HOA's argument regarding the second cause of action is largely derivative of the above. Namely, HOA argues that the claim is uncertain because the alleged lien amount of \$263k is inconsistent with the apparent payment of \$43k. HOA argues that the FAC “does not specify the value of the work performed or who owes Plaintiff what amount of money for what work.” (Dem. 4:3-4.) Again, these are ambiguities that can be clarified through discovery. They are not pleading defects that render the complaint incomprehensible.

c. Quantum Meruit

HOA again argues that the claim is ambiguous because “the FAC sets forth no information as to what the ‘reasonable

value of the services' Plaintiff is trying to recover is or was conveyed on Defendant." (Dem. 5:1-5.) HOA contends that the FAC "does not specify which of the three contracts, or portions thereof, were paid, or not paid." (Ibid.) These are ambiguities that can be clarified through discovery.

For pleading purposes, the FAC has sufficiently pled a benefit conferred to HOA (construction services) for which full compensation has not been provided, resulting in a balance owed. This sets forth a quantum meruit claim with sufficient clarity for HOA to respond.

V. CONCLUSION

Defendant Design Villas Homeowners Association, Inc.'s demurrer to First Amended Complaint is OVERRULED.